



Brunei and Maldives Act 1985

1985 CHAPTER 3

An Act to make provision in connection with the admission of Brunei and Maldives to membership of the Commonwealth. [11th March 1985]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
consequential
on
membership of
Common-
wealth.

1. The enactments specified in the Schedule to this Act shall have effect subject to the amendments there specified, being amendments consequential on the admission of Brunei and Maldives to membership of the Commonwealth.

Short title.

2. This Act may be cited as the Brunei and Maldives Act 1985.

SCHEDULE

AMENDMENTS OF ENACTMENTS

Shipping

1. In section 427(2) of the Merchant Shipping Act 1894 (ships to 1894 c. 60. which section 427 does or does not apply), before the words "or in any" there shall be inserted the words "or Brunei or Maldives".

2. In the Whaling Industry (Regulation) Act 1934 the expression 1934 c. 49. "British ship to which this Act applies" shall not include a British ship registered in Brunei or Maldives.

Commonwealth Institute

3. In section 8(2) of the Imperial Institute Act 1925, as amended by 1925 c. xvii. the Commonwealth Institute Act 1958 (power to vary the provisions 1958 c. 16. of the said Act of 1925 if an agreement for the purpose is made with the governments of certain territories which for the time being are contributing towards the expenses of the Commonwealth Institute), at the end there shall be added the words "and Brunei and Maldives".

The Services

4. In the definition of "Commonwealth force" in section 225(1) of 1955 c. 18. the Army Act 1955 and section 223(1) of the Air Force Act 1955, and 1955 c. 19. in the definition of "Commonwealth country" in section 135(1) of 1957 c. 53. the Naval Discipline Act 1957, at the end there shall be added the words "or Brunei or Maldives".

Visiting forces

5. In the Visiting Forces (British Commonwealth) Act 1933 section 4 1933 c. 6. (attachment of personnel and mutual powers of command) shall apply in relation to forces raised in Brunei or Maldives as it applies to forces raised in Dominions within the meaning of the Statute of Westminster 1931 c. 4 (22 & 23 Geo. 5). 1931.

6. In the Visiting Forces Act 1952, in section 1(1)(a) (countries to 1952 c. 67. which the Act applies), at the end there shall be added the words "Brunei or Maldives, or"; and any Order in Council under section 8 of that Act for the time being in force (applying to visiting forces the law relating to home forces) shall be deemed to apply to the visiting forces of Brunei and Maldives until express provision with respect to those countries is made under that section.

Offices, shops and railway premises

7. In section 84(2) of the Offices, Shops and Railway Premises Act 1963 c. 41. 1963 and section 78(2) of the Office and Shop Premises Act (Northern 1966 c. 26 Ireland) 1966 (exclusion of visiting forces from Act), before the words (N.I.). "and any country" there shall be inserted the words ", Brunei, Maldives".

Nationality

1981 c. 61.

8. In Schedule 3 to the British Nationality Act 1981 (countries whose citizens are Commonwealth citizens), after the word " Malaysia " there shall be inserted the word " Maldives ".